

be continued until after the hearing on the motion to set aside Mr. Kalnytskyi's default.

Scheduling

Special motions to strike, *i.e.* anti-slapp motions, are to be heard on an expedited basis. (See Code Civ. Proc. § 425.16(f).) The motion to set aside is currently scheduled for September 18, 2026. The Court on its own motion will advance the hearing on the motion to set aside filed by Mr. Kalnytskyi to **August 14, 2026**. The hearing on the Special Motion to Strike will be continued until **August 21, 2026**. Plaintiff's opposition to the motion to set aside default is due August 3, 2026. Defendant's Reply, if any, is due on or before August 7, 2026.

Akrian, Inc.'s Motion

The Court notes that Defendant Akrian, Inc. is also currently in default and that a motion to set aside has been filed on its behalf. **The court notes that Defendant Akrian, Inc., must be represented in court by an attorney and Mr. Kalnutsyki cannot represent Akrian, Inc. in court.** As a matter of efficiency, the Court will also reschedule the hearing on the motion to set aside Akrian, Inc.'s default to **August 14, 2026**.

Conclusion

The hearing on this motion is continued as follows:

- The hearings on both Defendant Kalnytskyi and Defendant Akrian, Inc.'s motions to set aside default are advanced to **August 14, 2026**, at 9:00 a.m.
- Plaintiff's oppositions to the motions to set aside are due on or before August 3, 2026. Plaintiff may file a joint opposition if he so desires.
- Defendant's reply, if any, is due on or before August 7, 2026.
- The hearing on Defendant Kalnytskyi's Special Motion to Strike is continued until **August 21, 2026**.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant BMW of North America, LLC (BMW)'s Motion filed March 11, 2026 to Compel Plaintiff's Further Responses to Form Interrogatories, Set One and for

Monetary Sanctions is before the Court (Motion). Defendant included a sufficient description of its attempts to meet and confer with Plaintiff on February 10, February 18, March 5, and March 6 of 2026 prior to filing its motion. (Declaration of Danielle D. Greenstein, attached to Motion at page 10: 16 – 11: 6, and Exs. C, D, E, and F.) Despite those meet and confer communications, Plaintiff had not, as of the time of the filing of the Motion, served supplemental responses to Form Interrogatories Nos. 3.0, 7.1, and 9.1. (Greenstein Dec., page 11: 7-9.) Defendant requests \$1,260 in attorneys fees and costs.

Plaintiff opposes the motion stating that Plaintiff's counsel was "recently assigned" to this case, "having taken it over from the previous attorney." (Plaintiff's Memorandum of Points and Authorities in Opposition to Defendant's Motion to Compel Responses to Form Interrogatories, Set One (Opp.), filed June 26, 2026, at 2: 12-15.) Plaintiff's counsel states that promptly reviewed the file, but "inadvertently overlooked" a March 6, 2026 email from Defendant's counsel providing her availability. (Opp. 13-15.) Plaintiff declared an intention to serve supplemental responses to form Interrogatories Nos. 3.0, 7.1, and 9.1 "prior to the hearing on this motion." (Opp. 21-22) Plaintiff asserts this motion will be moot by the time of the hearing on July 10, 2026 and requests that the Court not impose sanctions. (Opp., 2: 22-23; 3:23-24.)

Defendant acknowledges in Reply that Plaintiff served supplemental responses on June 30, 2026, four days after the Opposition was filed on June 26. Defendant argues that Plaintiff's change of counsel within the same law firm does not constitute substantial justification for the failure to meet and confer nor for deficient discovery responses.

The Court agrees with the Defendant. Lawyers at the same law firm received four meet and confer communications from defense counsel in a period of four weeks and made no response. Plaintiff's counsel asserts an "inadvertently overlooking" of the March 6, 2026 email from Defendant, but offers no explanation for its non-response to the three earlier emails, nor for the initially deficient discovery responses. Plaintiff's argument that Defendant failed to meet and confer because "Plaintiff never heard from Defendant again" after Plaintiff ignored Defendant's four attempts to meet and confer in February and March of 2026, and after Plaintiff "inadvertently overlooked" Defense counsel's last email dated March 6, 2026 defies logic. It assumes the burden would be on Defense counsel to continue to reach out to Plaintiff after the

latter ignored the former's multiple communications for over a month. This assertion and its premise are one reason why the Court finds the Plaintiff has failed to act with substantial justification.

Plaintiff offers no justification at all, let alone a substantial one, for its actions in failing to meet and confer and in failing to provide code complaint responses over a four month period.

It is true that the motion to compel is moot regarding the production of supplemental responses, however the issue of sanctions may yet be addressed by the court.

California Rule of Court 3.1348 provides that sanctions may be imposed even if the requested discovery was provided after the motion to compel was filed.

The court orders Plaintiff's counsel to pay Defendant's counsel \$1200 in attorneys fees and \$60 in costs. Payment is due to Defendant's counsel within 30 days after service of notice of entry of this order on all parties.

17. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant BMW of North America, LLC (BMW)'s Motion filed March 11, 2026 to Compel Plaintiff's Further Responses to Special Interrogatories, Set One and for Monetary Sanctions is before the Court (Motion). Defendant included a sufficient description of its attempts to meet and confer with Plaintiff on February 10, February 18, March 5, and March 6 of 2026 prior to filing its motion. (Declaration of Danielle D. Greenstein, attached to Motion, ¶¶ 4-7, and Exs. C, D, E, and F.) Despite those meet and confer communications, Plaintiff had not, as of the time of the filing of the Motion, served supplemental responses to Special Interrogatories Nos. 7-14, 18, 19, 20, 21, 22, 23, 24, 25 and 26. (Greenstein Dec., page 13: ¶ 9.) Defendant requests \$1,260 in attorneys' fees and costs.

Plaintiff opposes the motion stating that Plaintiff's counsel was "recently assigned" to this case, "having taken it over from the previous attorney." (Plaintiff's Memorandum of Points and Authorities in Opposition to Defendant's Motion to Compel Responses